

SENATE BILL 1699

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 4;  
Title 7, Chapter 68; Title 12; Title 38; Title 49 and  
Title 50, Chapter 1, relative to immigration  
enforcement activities.

WHEREAS, the State of Tennessee is committed to ensuring the safety, dignity, and human rights of all residents, regardless of race, religion, immigration status, or national origin; and

WHEREAS, civil immigration enforcement activities have historically undermined community trust, spread fear, and created barriers to accessing essential state services; and

WHEREAS, federal agents have used state and local government infrastructure in Tennessee, including public parking lots, among other locations, as staging sites for civil immigration enforcement operations in surrounding areas; and

WHEREAS, Tennessee has long recognized that public safety is best achieved through trust and collaboration between residents and local government, not through militarization or deputization of state resources in service of civil immigration enforcement; and

WHEREAS, in conducting civil immigration enforcement activities, law enforcement has engaged in racial profiling and detaining individuals without due process in violation of individuals' rights that are protected under the Fourth and Fifth Amendments to the United States Constitution; and

WHEREAS, the unauthorized use of state resources, property, or personnel to facilitate civil immigration enforcement actions interferes with the state's authority over, and its use of, its own resources, property, and personnel; and

WHEREAS, the unauthorized use of state resources, property, or personnel to facilitate civil immigration enforcement actions also erodes trust between immigrant communities and

local law enforcement, weakening the relationships that are essential to ensuring public safety and effective community policing; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 4, Chapter 1, Part 4, is amended by adding the following as a new section:

(a) As used in this section, "staging area" means an area that is used to assemble, mobilize, and deploy vehicles, equipment, or materials, and related personnel.

(b) Notwithstanding a law to the contrary, the following real property must not be used as a staging area, processing location, or operations base for civil immigration enforcement activities:

(1) A public parking lot, vacant lot, or garage that is owned and operated by this state or a political subdivision of this state;

(2) The campus grounds of a public school; public charter school; or private school, as defined in § 49-6-804; and

(3) Property owned by a religious institution that is exempt from property taxes under § 67-5-212.

(c) For purposes of complying with subdivision (b)(1), state and local government entities shall collaborate to identify publicly owned and controlled parking lots, vacant lots, and garages that either have been used, or are likely to be used in the future, as a staging area, processing location, or operations base for civil immigration enforcement.

(d) A person who is responsible for the operation of real property described in subdivision (b)(1) or (b)(2) shall, and a person who is responsible for the operation of real property described in subdivision (b)(3) may:

(1) Use, wherever appropriate, physical barriers such as locked gates to limit access to the property; and

(2) Develop and implement procedures and policies necessary to implement this section. Any such procedures and policies developed and implemented for real property described in subdivision (b)(2) or (b)(3) must provide that:

(A) A school or church employee, as applicable, who becomes aware of the attempted or actual use the property as a staging area, processing location, or operations base for civil immigration enforcement shall immediately report such attempted or actual use to their supervisor; and

(B) A supervisor who becomes aware of the attempted or actual use of the property as a staging area, processing location, or operations base for civil immigration enforcement, either through the supervisor's own observation or a report made pursuant to subdivision (d)(2)(A), shall report such attempted or actual use to the city mayor's office, if the property is located within the jurisdiction of a municipality, or the county mayor's office, if the property is located outside the jurisdiction of a municipality, and local law enforcement.

(e) The department of safety, in consultation with the attorney general and reporter, shall produce materials that provide general information concerning the rights of employees, students, security staff, and partitioners regarding entry to real property by federal agents. State government departments and agencies shall make the materials available to the public.

(f) This section does not restrict or interfere with the execution of lawful judicial warrants or the enforcement of criminal law, nor does it limit the rights of any person under state or federal law.

(g) This section does not prohibit the use of state-owned and -controlled property for purposes other than a staging area, processing location, or operations base for civil immigration enforcement, nor does it restrict any person from carrying out functions unrelated to those purposes on such property.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.